

FEDERAL MARITIME COMMISSION

HAPAG-LLOYD AG – INVESTIGATION FOR COMPLIANCE
WITH 46 U.S.C. § 41104(a) UNDER THE CHARGE
COMPLAINT PROCEDURES OF 46 U.S.C. § 41310

DOCKET NO. CC-002

Served: March 6, 2026

ORDER DIRECTING HAPAG-LLOYD AG TO SHOW CAUSE

Pursuant to 46 C.F.R. § 502.91, the Federal Maritime Commission (Commission or FMC) directs Respondent Hapag-Lloyd AG, to show cause by March 31, 2026 as to why it should not be ordered to refund or waive charges assessed or paid for failure to comply with 46 U.S.C. §§ 41104(a)(14) and 41104(a)(15)(B).

This proceeding is commenced under 46 U.S.C. § 41310 and 46 C.F.R. § 502.91, based on information submitted by Complainant Oceana Global Logistics, LLC. In support of this Order to Show Cause, the Commission's Bureau of Enforcement, Investigations, and Compliance (BEIC) makes the following allegations:

STATEMENT OF FACTS CONSTITUTING BASIS FOR COMMISSION ACTION

1. Hapag-Lloyd AG (Hapag or Respondent) is a vessel-operating common carrier (VOCC) (Organization No. 005980), headquartered at Postfach 102626, Ballindam 25, 2000 Hamburg 1, Germany.
2. According to records submitted to the Commission, Hapag is represented in the United States by its U.S. agent, Hapag-Lloyd (America) LLC., located at 3 Ravinia Drive, Suite 1650, Atlanta, Georgia, 30346.

THE COMMISSION'S JURISDICTION AND REQUIREMENTS OF LAW

3. Under 46 U.S.C. § 41302(a), the Commission is empowered to investigate any conduct, fee, or charge that the Commission believes to be in violation of the Shipping Act of 1984, as amended, 46 U.S.C. §§ 40101-41310 (Shipping Act).
4. Effective June 16, 2022, the Ocean Shipping Reform Act of 2022 (OSRA 2022) (P.L. 117-146) amended the Shipping Act to set forth, *inter alia*, new provisions at 46 U.S.C. § 41310, entitled Charge Complaints.
5. The provisions of 46 U.S.C. § 41310 require the Commission to “promptly investigate” charges assessed by a common carrier for compliance with 46 U.S.C. §§ 41104(a) and 41102.
6. If the Commission determines that a charge does not comply with §§ 41104(a) or 41102, the Commission shall, under 46 U.S.C. § 41310(c), “promptly” order the refund of charges paid or waiver of charges assessed.
7. If the Commission determines that a charge does not comply with §§ 41104(a) or 41102, the Commission also is authorized under 46 U.S.C. § 41310(d) to issue a civil penalty under 46 U.S.C. §§ 41107 and 41109 to the common carrier making such charge.

BASIS FOR ALLEGED VIOLATIONS OF SECTION 41104(a)

Prior History

8. On or about February 5, 2025, Oceana Global Logistics, LLC (Oceana or Complainant) filed Charge Complaint No. 20250034 (CC#1) under 46 U.S.C. § 41310, as a party billed, assessed, or paid for certain charges by Hapag.

9. In CC#1 Complainant alleged certain required information was missing or incorrect on 167 detention or demurrage invoices (Original Invoices) issued by Respondent.
10. On or about April 18, 2025, Respondent issued to Complainant 159¹ revised invoices (Second Invoices).
11. With the 159 Second Invoices, Respondent assessed and billed the same charges as the disputed Original Invoices.
12. Respondent issued the 159 Second Invoices with the same invoice numbers as the disputed Original Invoices.
13. Respondent asserted the Original Invoices complied with the applicable regulation (46 C.F.R. § 541, *et seq.*) and that it issued revised invoices to provide further clarification.
14. Respondent asserted that carriers were “allowed to cure informational issues in their original invoices and reissue them as needed, so long as the billed party remains the same.”²
15. On or about May 7, 2025, Respondent resolved CC#1 when it confirmed cancelation of all 167 original invoices that were the subject of CC#1.
16. On or about May 13, 2025, CC#1 was closed.

Instant Charge Complaint

17. On or about May 27, 2025, the Commission received the instant Charge Complaint (No. 20250139) (CC#2) from Oceana under 46 U.S.C. § 41310, as a party billed, assessed, or paid for certain charges by Hapag.

¹ In its April 22, 2025 response to BEIC, Hapag indicated it did not reissue eight (8) of the 167 invoices stating those invoices were no longer part of its outstanding claims against Oceana.

² For support, Respondent pointed to Commission guidance in the Final Rule, Demurrage and Detention Billing Requirements, 89 Fed. Reg. 14330, 14349 (Feb. 26, 2024) (OSRA does not prevent reissuing charges on an invoice meeting statutory requirements), and 46 C.F.R. § 541.7(b) (sic) (presuming “(d)”--reissuance of an invoice is limited to 30-days when the wrong party is billed).

18. Complainant filed CC#2 disputing the 159 Second Invoices (identified in Attachment A) alleging all were issued more than 30 days after the date on which the charge was last incurred in violation of the Shipping Act and Commission regulations.
19. Each of the 159 invoices identified in Attachment A shows it was issued by Hapag-Lloyd (America) LLC on behalf of Hapag-Lloyd AG.
20. Of the 159 invoices identified in Attachment A, nine (9) assess and charge detention charges.
21. Of the 159 invoices identified in Attachment A, one hundred fifty (150) assess and charge demurrage charges.
22. For the 159 invoices identified in Attachment A, all charges were incurred and invoiced after June 16, 2022.
23. For the 159 invoices identified in Attachment A, all charges were incurred and invoiced after May 28, 2024.
24. For the 159 invoices identified in Attachment A, the date of the last charge ranges from June 6, 2024, to November 27, 2024.
25. For the 159 invoices identified in Attachment A, the “Initial Invoice” date shown ranges from June 13, 2024, to December 10, 2024.
26. The “Initial Invoice” dates shown on the 159 invoices identified in Attachment A range from 2-13 days after the date on which the charge was last incurred.
27. All 159 invoices identified in Attachment A show a “Reissued Invoice” date of April 18, 2025.
28. The “Reissued Invoice” date shown on the 159 invoices identified in Attachment A ranges from 142-316 days after the date on which the last charge was incurred.

29. All 159 invoices identified in Attachment A were issued more than 30 days after the date on which the last charge was incurred.
30. To date, Complainant has not paid the charges assessed and invoiced on the 159 invoices identified in Attachment A.
31. For all 159 invoices identified in Attachment A, Respondent failed to issue the detention and demurrage invoices within 30 days after the date on which the last charge was incurred in violation of 46 C.F.R. §541.7(a).
32. For all 159 invoices identified in Attachment A, Respondent's failure to issue the detention and demurrage invoices within 30 days after the date on which the last charge was incurred in violation of 46 C.F.R. § 541.7(a) removes Complainant's obligation to pay the charges.
33. By issuing its detention and demurrage invoices contrary to the requirements of 46 C.F.R. § 541.7(a), Respondent assessed Complainant for charges that were inconsistent with or non-compliant with all applicable provisions and regulations in violation 46 U.S.C. § 41104(a)(14).
34. By issuing its detention and demurrage invoices contrary to the requirements of 46 C.F.R. § 541.7(a), Respondent invoiced Complainant for detention or demurrage charges that did not comply with applicable provisions and regulations in violation 46 U.S.C. § 41104(a)(15)(B).
35. Respondent's failure to issue its detention and demurrage invoices within 30 days of the date of the last charge in compliance with 46 C.F.R. § 541.7(a) and thus 46 U.S.C. §§ 41104(a)(14) and 41104(a)(15)(B) establishes that the Commission should promptly order the waiver or cancellation of all 159 invoices totaling \$1,191,470.00.

ORDER

NOW THEREFORE, IT IS ORDERED That, pursuant to 46 U.S.C. §§ 41102, 41304, 41310, and 46 C.F.R. §§ 502.61 and 502.91, Hapag-Lloyd AG is directed to show cause, within 25 days of service of this Order, why the Commission should not find that Respondent's action in assessing and charging detention and demurrage charges with respect to the 159 invoices identified in Attachment A constitutes a violation of 46 U.S.C. §§ 41104(a)(14) and 41104(a)(15)(B). Failure of Respondent to file a response will be deemed to constitute a waiver of the Respondent's right to appear and contest the allegations in the Order to Show Cause and to authorize the Commission to enter a decision on default as provided for in 46 C.F.R § 502.65. Well pleaded, factual allegations in this Order not answered or addressed will be deemed to be admitted.

IT IS FURTHER ORDERED That Hapag-Lloyd AG is directed to show cause why the Commission should not promptly order the waiver of charges assessed to Oceana Global Logistics, LLC with respect to charges that do not comply with § 41104(a)(14) as provided under § 41310(c);

IT IS FURTHER ORDERED That Hapag-Lloyd AG is directed to show cause why the Commission should not promptly order the waiver of charges invoiced to Oceana Global Logistics, LLC with respect to charges that do not comply with § 41104(a)(15)(B) as provided under § 41310(c);

IT IS FURTHER ORDERED That Hapag-Lloyd AG is directed to show cause why the Commission should not impose a civil penalty, under §§ 41310(d) and 41107 upon such finding of noncompliance with 46 U.S.C. §§ 41104(a)(14) and/or 41104(a)(15)(B); and provided that, in such event, Hapag-Lloyd AG shall have the opportunity for a hearing prior to assessment of a civil penalty, as provided under § 41109(a);

IT IS FURTHER ORDERED That this proceeding be limited to the submission of affidavits of fact, memoranda of law, and documentary evidence;

IT IS FURTHER ORDERED That Hapag-Lloyd AG be named as Respondent in this proceeding. Affidavits of fact, memoranda of law, and documentary evidence shall be filed by Respondent no later than March 31, 2026;

IT IS FURTHER ORDERED That the Commission's Bureau of Enforcement, Investigations, and Compliance be made a party to this proceeding;

IT IS FURTHER ORDERED That reply affidavits, memoranda of law, and documentary evidence shall be filed by the Bureau of Enforcement, Investigations, and Compliance in opposition to Respondent no later than April 27, 2026;

IT IS FURTHER ORDERED That:

- (a) Should any party believe that the submission of oral testimony or additional evidence is required, that party must submit a request together with a statement setting forth in detail the facts to be proved, the relevance of those facts to the issues in this proceeding, a description of the evidence which would be adduced, and why such testimony or other evidence cannot be submitted by affidavit; and
- (b) Should any party believe that oral argument is required, that party must submit a request specifying the reasons therefore and why argument by memorandum is inadequate to present the party's case; and
- (c) Any request for submission of oral testimony, additional evidence or for oral argument shall be filed no later than April 27, 2026;

IT IS FURTHER ORDERED That, pursuant to 46 C.F.R. § 502.10, the Commission hereby waives the provisions of Subparts A - E, I - L and P of Part 502, and all other provisions of the Commission's Rules of Practice and Procedure except as consistent with this Order.

IT IS FURTHER ORDERED That notice of this Order to Show Cause be published in the Federal Register, and that a copy thereof be served upon Respondent's U.S. office or agent at its last known address;

IT IS FURTHER ORDERED That all documents submitted by any party of record in this proceeding shall be filed in accordance with 46 C.F.R § 502.2, as well as e-mailed directly to all parties of record. Certain requirements related to the paper filing of documents, ink signatures, and service by mail of complaints have been waived at this time. *See* Order, Docket No. 20-07, (FMC May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf/. Filing and service by email is preferred; and

FINALLY, IT IS ORDERED That, pursuant to the terms of 46 C.F.R. § 502.61, the final decision of the Commission in this proceeding shall be issued no later than June 8, 2026, which may be extended by the Commission order.

By the Commission.

David Eng
Secretary

ATTACHMENT A

No.	Invoice No.	Amount
1	2123939508	\$1,300.00
2	2124103847	\$290.00
3	2124227411	\$1,160.00
4	2124227696	\$1,740.00
5	2124227715	\$1,160.00
6	2124227699	\$580.00
7	2124230507	\$290.00
8	2124232494	\$580.00
9	2124233156	\$290.00
10	2124233157	\$290.00
11	2124239696	\$580.00
12	2124247429	\$3,190.00
13	2124255716	\$1,740.00
14	2124255715	\$3,480.00
15	2124521854	\$8,130.00
16	2124521858	\$8,130.00
17	2124521851	\$8,520.00
18	2124521862	\$8,520.00
19	2124523886	\$7,740.00
20	2124529404	\$7,740.00
21	2124530166	\$27,120.00
22	2124534575	\$8,130.00
23	2124536353	\$8,910.00
24	2124536355	\$8,910.00
25	2124536500	\$8,520.00
26	2124536504	\$8,520.00
27	2124536547	\$8,520.00
28	2124536551	\$8,520.00
29	2124536591	\$8,520.00
30	2124536593	\$8,520.00
31	2124536594	\$8,520.00
32	2124541014	\$7,740.00

No.	Invoice No.	Amount
33	2124541010	\$7,740.00
34	2124546751	\$8,130.00
35	2124546750	\$8,130.00
36	2124546814	\$8,130.00
37	2124546794	\$8,130.00
38	2124546806	\$8,130.00
39	2124546828	\$8,130.00
40	2124546829	\$8,130.00
41	2124546997	\$8,130.00
42	2124547028	\$8,130.00
43	2124547024	\$8,130.00
44	2124547007	\$7,350.00
45	2124547002	\$7,350.00
46	2124547012	\$7,740.00
47	2124547017	\$7,740.00
48	2124547402	\$8,130.00
49	2124555040	\$8,520.00
50	2124559669	\$8,910.00
51	2124559673	\$8,910.00
52	2124559675	\$8,910.00
53	2124559679	\$8,910.00
54	2124559670	\$8,910.00
55	2124559680	\$8,910.00
56	2124559695	\$8,910.00
57	2124559693	\$8,910.00
58	2124559694	\$8,910.00
59	2124559687	\$8,910.00
60	2124559684	\$8,910.00
61	2124566225	\$9,300.00
62	2124566237	\$9,300.00
63	2124566239	\$9,300.00
64	2124566241	\$9,300.00

No.	Invoice No.	Amount
65	2124571737	\$9,690.00
66	2124572122	\$9,690.00
67	2124572125	\$9,690.00
68	2124579096	\$7,350.00
69	2124579099	\$7,350.00
70	2124579102	\$7,740.00
71	2124579104	\$7,740.00
72	2124579100	\$7,740.00
73	2124579101	\$7,740.00
74	2124584767	\$300.00
75	2124584771	\$2,700.00
76	2124584775	\$3,000.00
77	2124584769	\$2,700.00
78	2124588127	\$16,650.00
79	2124588671	\$8,520.00
80	2124588675	\$8,520.00
81	2124594343	\$16,530.00
82	2124594416	\$8,910.00
83	2124594675	\$1,800.00
84	2124594873	\$43,080.00
85	2124594918	\$11,640.00
86	2124594949	\$4,560.00
87	2124595017	\$4,230.00
88	2124595019	\$4,620.00
89	2124595015	\$4,620.00
90	2124595016	\$4,620.00
91	2124595168	\$4,230.00
92	2124595237	\$2,140.00
93	2124595239	\$2,140.00
94	2124595238	\$2,140.00
95	2124595244	\$2,140.00
96	2124595243	\$2,140.00
97	2124595240	\$2,510.00
98	2124595242	\$2,510.00
99	2124595241	\$2,140.00
100	2124601846	\$4,620.00
101	2124601908	\$5,790.00

No.	Invoice No.	Amount
102	2124601911	\$5,790.00
103	2124601913	\$5,400.00
104	2124601917	\$5,790.00
105	2124601915	\$5,400.00
106	2124602003	\$8,520.00
107	2124602004	\$8,520.00
108	2124602002	\$8,910.00
109	2124601997	\$8,910.00
110	2124602000	\$8,910.00
111	2124601995	\$9,300.00
112	2124618402	\$4,620.00
113	2124618419	\$10,080.00
114	2124618420	\$10,080.00
115	2124618414	\$10,080.00
116	2124618418	\$10,080.00
117	2124618506	\$6,180.00
118	2124619293	\$7,610.00
119	2124619439	\$4,620.00
120	2124619441	\$5,010.00
121	2124619444	\$4,620.00
122	2124619445	\$5,010.00
123	2124619449	\$4,620.00
124	2124619451	\$5,010.00
125	2124619517	\$6,180.00
126	2124619738	\$3,900.00
127	2124619735	\$3,000.00
128	2124620339	\$5,010.00
129	2124620337	\$4,620.00
130	2124620333	\$5,010.00
131	2124657682	\$2,700.00
132	2124552630	\$8,520.00
133	2124552631	\$8,520.00
134	2124552633	\$8,520.00
135	2124554646	\$8,520.00
136	2124554648	\$8,520.00
137	2124554650	\$8,520.00
138	2124555012	\$7,740.00

No.	Invoice No.	Amount
139	2124555013	\$8,130.00
140	2124555014	\$8,130.00
141	2124555018	\$8,130.00
142	2124555021	\$7,740.00
143	2124555025	\$8,130.00
144	2124555028	\$8,130.00
145	2124555032	\$8,130.00
146	2124555033	\$7,740.00
147	2124555035	\$8,130.00
148	2124555036	\$7,740.00

No.	Invoice No.	Amount
149	2124588279	\$2,700.00
150	2124536408	\$300.00
151	2124513443	\$30,960.00
152	2124519203	\$55,350.00
153	2124521807	\$8,130.00
154	2124521809	\$8,130.00
155	2124521811	\$8,130.00
156	2124521831	\$8,520.00
157	2124521841	\$8,910.00
158	2124521843	\$8,520.00
159	2124521848	\$8,130.00
Total		\$1,191,470.00